

**IN THE COUNTY COURT IN AND FOR PASCO COUNTY, FLORIDA
CIVIL DIVISION 6-B**

SWEET LIVING, INC.,

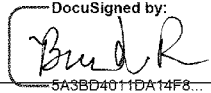
Plaintiff,

vs.

CASE NO.: 2026CC001256CCAXES

BRANDI RODGERS,

Defendant.

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**DEFENDANT'S MOTION TO DISMISS COMPLAINT FOR FAILURE TO STATE A
CAUSE OF ACTION AND LACK OF STANDING**

COMES NOW Defendant, BRANDI RODGERS, appearing pro se, and pursuant to Florida Rule of Civil Procedure 1.140(b)(6) (failure to state a cause of action upon which relief can be granted) and 1.140(b)(2) (lack of personal jurisdiction / lack of standing), moves this Honorable Court to DISMISS the Complaint herein, and as grounds therefor, states:

I. STANDARD OF REVIEW

A motion to dismiss for failure to state a cause of action tests the legal sufficiency of the complaint, not the truth of its factual allegations. The Court is confined to the four corners of the complaint and the documents attached to or incorporated by reference therein; all well-pleaded factual allegations of the complaint are accepted as true for purposes of the motion. The complaint must allege facts that, if true, establish each element of a recognized cause of action under Florida law.

By limiting itself to the face of Plaintiff's Complaint, this Motion asks the Court to assume the truth of Plaintiff's allegations and to determine, as a matter of law, whether those allegations — even if true — establish that Plaintiff is entitled to relief against Defendant under Chapter 723 of the Florida Statutes.

II. ARGUMENT

A. The Complaint, On Its Face, Fails to Allege That Defendant Is a "Mobile Home Owner" Within the Meaning of Fla. Stat. § 319.22(2).

Plaintiff seeks recovery against Defendant on the theory that Defendant is the "owner" of a mobile home situated in Plaintiff's park. As a matter of Florida statutory law, however, the only "owner" of a mobile home is the person to whom a certificate of title has been duly issued. Fla. Stat. § 319.22(2) provides:

"A person acquiring a motor vehicle or mobile home from the owner thereof, whether or not the owner is a licensed dealer, shall not acquire marketable title to the motor vehicle or mobile home until he or she has had issued to him or her a certificate of title to the motor vehicle or mobile home ... No court shall recognize

the right, title, claim, or interest of any person in or to any motor vehicle or mobile home sold, disposed of, mortgaged, or encumbered, unless evidenced by a certificate of title duly issued to that person, in accordance with the provisions of this chapter."

The Complaint contains no allegation that a Florida certificate of title to the mobile home has ever been issued in Defendant's name. Plaintiff's Complaint is therefore legally insufficient to establish that Defendant is an "owner" under § 319.22(2). The statute's express command that "no court shall recognize" any right or interest in a mobile home absent a duly issued certificate of title precludes this Court from treating Defendant as an owner on the allegations as pleaded.

B. The Complaint, On Its Face, Fails to Allege That Defendant Is a "Tenant" Within the Meaning of Fla. Stat. § 723.059.

Plaintiff alternatively appears to invoke Defendant's status as a "tenant" or "purchaser" within the park. Fla. Stat. § 723.059(1) provides in pertinent part:

"The purchaser of a mobile home within a mobile home park may become a tenant of the park if such purchaser would otherwise qualify with the requirements of entry into the park under the park rules and regulations, subject to the approval of the park owner, but such approval may not be unreasonably withheld. The purchaser of the mobile home may cancel or rescind the contract for purchase of the mobile home if the purchaser's tenancy has not been approved by the park owner 5 days before the closing of the purchase."

Tenancy under Chapter 723 is therefore a status that arises only by park-owner approval. The Complaint contains no allegation that Plaintiff (or the park owner it represents) ever approved Defendant as a tenant. Absent any well-pleaded allegation of approval, the Complaint cannot, as a matter of law, plead Defendant's status as a tenant.

C. Section 723.061(1)(a) — Eviction for Nonpayment — Requires the Defendant to Be an Owner or a Tenant; Without That Predicate, the Complaint States No Cause of Action.

Fla. Stat. § 723.061(1)(a) authorizes eviction only "[i]f a mobile home owner or tenant, whichever is responsible, fails to pay the lot rental amount when due ...". The express predicate of the cause of action is that the defendant be either a mobile home owner or a tenant. As shown in Parts II.A and II.B above, the Complaint pleads neither status as to Defendant. The cause of action is therefore not stated as a matter of law.

D. Section 723.061(1)(e) — Failure to Be Approved — Does Not Authorize a Personal Money Judgment for Back Lot Rent.

To the extent the Complaint may be construed as proceeding under Fla. Stat. § 723.061(1)(e) (failure of a purchaser to obtain park approval), that subsection by its plain text authorizes only removal of the mobile home and/or removal of an unapproved person who occupies the home:

"Failure of the purchaser, prospective tenant, or occupant of a mobile home situated in the mobile home park to be qualified as, and to obtain approval to become, a tenant or occupant of the home, if such approval is required by a properly promulgated rule. If a purchaser or prospective tenant of a mobile home situated in the mobile home park occupies the mobile home before such approval is granted, the mobile home owner or mobile home tenant must vacate the

premises within 7 days after the date the notice of the failure to be approved for tenancy is delivered."

The operative consequence of subsection (1)(e) is a 7-day vacate obligation; it does not, by its terms, create a personal in personam money cause of action for back lot rent against an unapproved purchaser. To the extent the Complaint demands a money judgment, attorney's fees, and costs against Defendant personally under § 723.061(1)(e), it fails to state a cause of action upon which relief can be granted.

E. Plaintiff Lacks Standing to Recover Lot Rent From Defendant Because the Complaint Fails to Allege Privity.

Standing in a Chapter 723 lot-rent action depends on a relationship — owner-to-park or approved-tenant-to-park — that the Complaint fails to plead. The Complaint does not allege the issuance of a certificate of title in Defendant's name, does not allege park-owner approval of Defendant as a tenant, and does not allege any written lot-rental agreement between Plaintiff and Defendant. Plaintiff is therefore not in privity, statutory or contractual, with Defendant, and lacks standing to recover lot rent from Defendant. The Complaint should be dismissed under Fla. R. Civ. P. 1.140(b)(2)/(b)(6).

F. Subsection (1)(c) Requires Properly Promulgated, Non-Arbitrarily Applied Rules — A Predicate the Complaint Does Not Adequately Allege.

If any portion of the Complaint relies on a park rule or regulation as a basis for eviction or as the screening rule contemplated by § 723.061(1)(e), the Complaint must allege that the rule has been properly promulgated. Fla. Stat. § 723.061(1)(c) provides that "[a] properly promulgated rule or regulation may not be arbitrarily applied and used as a ground for eviction." The Complaint does not allege the text, promulgation, or uniform application of any such rule. The Complaint is therefore legally insufficient under this subsection as well.

III. CONCLUSION AND PRAYER FOR RELIEF

WHEREFORE, Defendant respectfully requests that this Honorable Court:

1. DISMISS the Complaint for failure to state a cause of action and for lack of standing pursuant to Fla. R. Civ. P. 1.140(b)(2) and (b)(6);
2. In the event the Court does not dismiss outright, GRANT Defendant leave to file an Answer and affirmative defenses, including the defenses set forth herein, within a time certain following ruling on this Motion; and
3. GRANT such further relief as the Court deems just and proper.

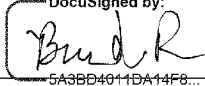
NOTE REGARDING COMPANION MOTION

Defendant has contemporaneously filed a separate Verified Motion to Determine Rent and Request for Evidentiary Hearing on the Existence of a Tenancy, pursuant to Fla. Stat. § 723.063(2) and the appellate authority of Frey v. Livecchi, 852 So. 2d 896 (Fla. 4th DCA 2003) and Grimm v. Huckabee, 891 So. 2d 608 (Fla. 1st DCA 2005). Defendant respectfully requests that the Court address the registry-deposit issue in that separate motion, not herein.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on May 21, 2026, a true and correct copy of the foregoing was furnished by ☐ U.S. Mail, ☒ email, ☐ hand delivery to: Keith Wynn, Esq., counsel for Plaintiff, at the address and email of record with the Pasco County Clerk of Court.

Respectfully submitted,

DocuSigned by:

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BRANDI RODGERS, Defendant pro se

13721 94th Avenue

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DOCUMENT